

diplomacy

INDO-US NUCLEAR DEAL

India and the US may have finalised the deal on civilian nuclear cooperation but nuclear commerce may take some time

■ By Saurabh Shukla

It's a deal" said it all, as a visibly relieved Indian team walked out of the 7th floor room at Foggy Bottom, the popular name for the US State Department building on July 20 in Washington DC. The diplomarathon had stretched to five days with the drafts going back and forth with every full stop and comma coming under scrutiny. The hurdles had finally been cleared, vetted by almost a dozen-odd US legal eagles, and matched up by their two Indian counterparts. And as the Indian delegation led by National Security Adviser M.K. Narayanan, Atomic Energy Commission Chairperson Anil Kakodkar and Foreign Secretary Shiv Shankar Menon along with Indian envoy to the US, Ronen Sen and key officials gathered at the Willard Hotel, they knew their hard work had paid off.

The agreement, under section 123 of the US Atomic Energy Act, is important as it codifies the Indo-US nuclear deal, in the end the breakthrough achieved amidst endless cups of black coffee, spiked with a great deal of political push from the White House. It did address India's key concerns on nuclear reprocessing and said it will not impede India's strategic weapons programme. "If it wasn't for the political push we would be negotiating this agreement for another ten years," said a member of the negotiating team.

However, the final round of the negotiations wasn't a cakewalk for a decision had to be reached on key issues like nuclear reprocessing. This was where the two sides had to trudge a distance. The negotiators worked at three levels—at the bottom were the officials who managed the nuts and bolts, with India's Envoy to Singapore S. Jaishankar and Richard Stratford from the US State Department forming the core team. They were assisted by diplomats and nuclear experts from



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both sides. If they got stuck on some issues, like that of fuel assurances and the nature of safeguards, they would then break, and seek the help of Menon and his counterpart US Undersecretary Nicholas Burns. The first day of the negotiations, July 16, saw the resolution of the fuel supply assurance while on the second day they agreed on the issue of reprocessing, although the reprocessing issue had to be referred to the third level consisting of Narayanan, Kakodkar and Sen, who had been in touch with the prime minister. Narayanan then met his US counterpart Steve Hadley, to clear the hurdles.

Next day the termination and "right to return" clauses were resolved while the fallback safeguards were finalised on July 19. By July 20, it had become clear that the deal had been clinched

though the officials used the day to produce and vet a comprehensive draft of the 123 Agreement. "We had to address the basic fears of our nuclear establishment that fuel supply will not be cut midway and that we will be allowed to reprocess spent fuel, which has been done," a member of the negotiating team said. So when Prime Minister Manmohan Singh chaired the meeting of the Cabinet Committee on Security and Political Affairs on July 25, the concerns whether the agreement met the 'bottom line' were put to rest. "All the concerns of India have been reflected and adequately addressed," declared External Affairs Minister Pranab Mukherjee.

The deal, first agreed upon in principle on July 18, 2005, will provide India access to US-supplied nuclear

"India's concerns have been reflected and adequately addressed in the deal."

PRANAB MUKHERJEE, EXTERNAL AFFAIRS MINISTER